

TORVANE INDUSTRIAL GROUP, INC.
Office of the General Counsel
2200 Bayfront Parkway, Erie, Pennsylvania 16507

June 9, 2011

Arthur Pllum, Esq.
Prescott Vane LLP
One Oliver Center, 40th Floor
Pittsburgh, Pennsylvania 15222

**Re: Confirmation of Scope of Engagement —Prescott Vane Matter No. 2011-0284
—Kelling Station Unit 2 —Brandt Thermal Systems, Inc.**

Dear Arthur:

I write to confirm, on behalf of Torvane Industrial Group, Inc., the scope of Prescott Vane LLP's engagement under your Matter No. 2011-0284 and the company's decision communicated in our call of June 8, 2011.

1. Prescott Vane's engagement under Matter No. 2011-0284 is limited to Torvane's claims against Ridgeline Constructors, Inc. arising out of the Kelling Station Unit 2 expansion.
2. Torvane has considered the potential warranty claim against Brandt Thermal Systems, Inc. relating to the Unit 2 regenerative thermal oxidizer, and has elected not to assert it. That claim is expressly outside the scope of Prescott Vane's engagement, and the firm is not asked to take any step to evaluate, preserve, or pursue it, including any tolling agreement, notice, or protective filing.
3. Prescott Vane advised the company, orally and in writing, of the limitations consequences of this election, including the likelihood that the claim will become time-barred, and recommended that the claim be preserved. The company understands and accepts those consequences. The election is the company's own business decision.
4. This confirmation is not limited to any period and stands unless withdrawn by me in writing.

The company appreciates the clarity and persistence of the firm's advice on this issue.

Very truly yours,

/s/ Rosalind Tenniel

Rosalind Tenniel
General Counsel
Torvane Industrial Group, Inc.

cc: Walter Hagerman, Vice President, Engineering